CONFIDENTIALITY AND CONSULTING ENGAGEMENT AGREEMENT

Parties

1. Kestrel Ridge Consulting Pty Ltd ACN 000 000 000 of Level 0, 00 Example Street, Sydney NSW 0000 ("Kestrel" or "Consultant").

2. _____ ABN _____ of _____ ("Client").

Background

A. The Client wishes to engage the Consultant to provide operational and strategy consulting services, and the parties expect to exchange confidential information for that purpose.

B. The parties have agreed to protect that information on the terms in Part A, and that the Consultant will provide the services on the terms in Part B.

PART A – CONFIDENTIALITY

1. Confidential Information. "Confidential Information" means all information disclosed by or on behalf of a party (the "Discloser") to the other party (the "Recipient") in connection with this agreement, whether before or after its date and in any form, including information about the Discloser's customers, pricing, finances, personnel, systems and business plans, but excluding information that is in the public domain other than through a breach of this agreement, or that the Recipient can show it lawfully held before disclosure.

2. Obligations. The Recipient must keep the Discloser's Confidential Information confidential, use it only for the purpose of this agreement, and not disclose it except to its officers, employees and professional advisers who need to know it and are bound by obligations of confidence no less strict than these. The Recipient is responsible for any breach by those people.

3. Required disclosure. The Recipient may disclose Confidential Information to the extent required by law or the listing rules of a stock exchange, provided it gives the Discloser as much notice as is reasonably practicable and co-operates with any lawful attempt to limit the disclosure.

4. Return and destruction. On request, and in any event when this agreement ends, the Recipient must return or destroy the Discloser's Confidential Information in its possession, except copies held in automatic back-up systems or required to be retained by law, which remain subject to this Part A.

5. Duration. The obligations in this Part A continue for five (5) years after this agreement ends, and indefinitely for trade secrets.

PART B – CONSULTING ENGAGEMENT

6. Services. The Consultant will provide the services described in Item 1 of the Schedule (the "Services") from the commencement date in Item 2, with due care and skill and in accordance with the Client's reasonable directions.

7. Fees. The Client must pay the fees in Item 3 of the Schedule, plus GST. The Consultant will invoice fortnightly in arrears and the Client must pay each correct tax invoice within fourteen (14) days of receipt. Pre-approved travel and accommodation outside the Sydney metropolitan area are reimbursed at cost.

8. Client representative. The person named in Item 4 of the Schedule is authorised to give directions and approvals on the Client's behalf. The Client may change its representative by written notice.

9. Intellectual property. Reports and other deliverables prepared specifically for the Client vest in the Client on payment. The Consultant retains its methods, frameworks, templates and know-how, and grants the Client a perpetual licence to use any of them embedded in a deliverable for the Client's internal purposes.

10. Personnel. The Consultant will perform the Services using the personnel it nominates. The Client may, acting reasonably, ask for any person to be replaced, and the Consultant will do so as soon as practicable at no extra cost.

11. Liability. To the extent permitted by law, including the Australian Consumer Law, each party's liability under this

agreement is limited to the total fees paid or payable under it, and neither party is liable for indirect or consequential loss. This limit does not apply to a breach of Part A.

12. Termination. Either party may terminate the engagement on twenty (20) business days' written notice, or immediately if the other party commits a material breach that is not remedied within ten (10) business days of notice. Part A and clauses 9 and 11 survive termination.

13. General. This agreement is governed by the laws of New South Wales. It may be executed in counterparts and by electronic signature. It is the entire agreement between the parties on its subject matter.

SCHEDULE

Item 1 – Services	As described in Consultant proposal reference _____
Item 2 – Commencement date	_____
Item 3 – Fees	A$_____ per consultant day, excluding GST
Item 4 – Client representative	_____

EXECUTED as an agreement.

For and on behalf of **Kestrel Ridge Consulting Pty Ltd**	For and on behalf of **the Client**
.....	.....
Signature of authorised person	*Signature of authorised person*
.....	.....
Name of authorised person (print)	*Name of authorised person (print)*
.....	.....
Office held	*Office held*
.....	.....
Date	*Date*